

IN THE COUNTY COURT, IN AND FOR MANATEE COUNTY, FLORIDA
COLONIAL MANOR MHC HOLDINGS, LLC,

Plaintiff,

Case No:
Civil Division
Landlord/Tenant Action

v.

**BERNICE THERESA LANGFORD, AND
IF DECEASED, ALL UNKNOWN PARTIES,
BENEFICIARIES, HEIRS, SUCCESSORS
AND ASSIGNS OF BERNICE THERESA
LANGFORD AND ALL PARTIES
HAVING OR CLAIMING TO HAVE ANY
RIGHT, TITLE, OR INTEREST IN THE
PROPERTY HEREIN DESCRIBED;
AND ALL UNKNOWN
UNAUTHORIZED OCCUPANTS,**

Defendants.

COMPLAINT FOR EVICTION

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC ("Owner"), sues Defendants, BERNICE THERESA LANGFORD, AND IF DECEASED, ALL UNKNOWN PARTIES, BENEFICIARIES, HEIRS, SUCCESSORS AND ASSIGNS OF BERNICE THERESA LANGFORD AND ALL PARTIES HAVING OR CLAIMING TO HAVE ANY RIGHT, TITLE, OR INTEREST IN THE PROPERTY HEREIN DESCRIBED; AND ALL UNKNOWN/UNAUTHORIZED OCCUPANTS residing in the mobile home located at 900 9th Avenue E., Lot 95, Palmetto, Manatee County, Florida 34221 (the "subject mobile home"), and states:

1. This is an action for eviction within the jurisdictional limits of this Court to evict a residential mobile home, mobile home tenants, and occupants from real property in Manatee County, Florida as authorized by Section 723.061, Florida Statutes.

2. The CFPB disclosure is attached as Exhibit "A" and will be served to Defendants.

3. Plaintiff owns and operates Colonial Manor MHC, a mobile home community located at 900 9th Avenue E., Palmetto, Manatee County, Florida 34221, the ("Community").

4. The residents of the Community own their mobile homes and lease their respective lots from Plaintiff. Accordingly, the landlord/tenant relationship existing between Plaintiff/Owner and its residents is governed by Chapter 723, Florida Statutes.

5. Defendant is the legal owner of a 1973 NEWM mobile home with VIN No. 2700785, located in the Community at 900 9th Avenue E., Lot 95, Palmetto, Manatee County, Florida 34221.

6. Pursuant to an oral lease agreement, Plaintiff, as landlord, leased to Defendants, as tenants, Lot #95, in the Community.

7. A written demand dated July 6 2021, for the monies then due and owing was given to the Defendants. See copy attached hereto as Exhibit "B".

8. The nonpayment default has continued for more than five days after delivery of said written demand to Defendants. Plaintiff is therefore entitled to a judgment of eviction pursuant to section 723.061(1)(a), Florida Statutes, which provides:

723.061 Eviction; grounds, proceedings.

(1) A mobile home park owner may evict a mobile home owner, a mobile home tenant, a mobile home occupant, or a mobile home only on one or more of the following grounds:

(1)(a) Nonpayment of lot rental amount. If a mobile home owner or tenant, whichever is responsible, fails to pay the lot rental amount when due and if the default continues for 5 days after delivery of a written demand by the

mobile home park owner for payment of the lot rental amount, the park owner may terminate the tenancy. However, if the mobile home owner or tenant, whichever is responsible, pays the lot rental amount due, including any late charges, court costs, and attorney's fees, the court may, for good cause, deny the order of eviction

9. Defendants have failed to pay all lot rental amounts when due for the month of July 2021. The total lot rental amount due as of July 6 2021, was \$666.50, which is the past due lot rental amount to be deposited in the Court Registry.

10. The monthly accruing lot rental amount of \$621.50, is the ongoing rent to be deposited in the Court Registry each month this action is pending.

11. If the amount outlined in paragraph 10 above is not deposited in the Court Registry by the fifth day of each month, a late fee in the amount of \$45.00 per month will accrue.

12. All conditions precedent to Plaintiff bringing this action have occurred or been waived.

13. Plaintiff is entitled to summary procedure as set forth in Section 51.011, Florida Statutes.

14. Plaintiff has retained the law firm of Lutz, Bobo & Telfair, P.A. to represent it in this action and is obligated to pay its attorneys a reasonable fee for their services.

15. Pursuant to Section 723.068, Florida Statutes, and the written lease agreement, the prevailing party in this action is entitled to attorney's fees.

WHEREFORE, Plaintiff requests judgment against Defendants allowing Plaintiff as Owner to take possession of said property; evicting Defendants and ordering the issuance of a writ of possession for the subject property, ordering the payment of all sums held in the registry of the court and/or the amounts due under the rental agreement prior to eviction

to Plaintiff; awarding prevailing party attorney's fees and costs to Plaintiff; and, granting other relief as the court deems just and proper.

Dated this 27th day of July 2021.

/s/ Charles Lovings
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